

1 **SENATE FLOOR VERSION**

2 April 14, 2026

3 ENGROSSED HOUSE
4 BILL NO. 4352

By: Wilk, Moore, and Schreiber
of the House

5 and

6 Howard of the Senate

7
8
9 An Act relating to mortgages; enacting the Oklahoma
10 Uniform Mortgage Modification Act; defining terms;
11 providing scope of act; providing list of laws and
12 statutes not affected by the act; exempting certain
13 mortgage modifications from the act; stating the
14 effect of mortgage modifications; directing courts to
15 make certain considerations when applying and
16 construing the act; describing manner by which the
17 act affects the Electronic Signatures in Global and
18 National Commerce Act; declaring that the act does
19 not affect electronic deliveries of certain notices;
20 providing when provisions of the act are applicable;
21 providing severability clause; providing for
22 codification; and providing an effective date.
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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 401 of Title 46, unless there is
21 created a duplication in numbering, reads as follows:

22 This act shall be known and may be cited as the "Oklahoma
23 Uniform Mortgage Modification Act".
24

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 402 of Title 46, unless there is
3 created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Electronic" means technology having electrical, digital,
6 magnetic, wireless, optical, electromagnetic, or similar
7 capabilities;

8 2. "Financial covenant" means an undertaking to demonstrate an
9 obligor's creditworthiness or the adequacy of security provided by
10 an obligor;

11 3. "Modification" means a change, amendment, revision,
12 correction, addition, supplementation, elimination, waiver, or
13 restatement;

14 4. "Mortgage":

15 a. means an agreement that creates a consensual interest
16 in real property to secure payment or performance of
17 an obligation, regardless of:

18 (1) how the agreement is denominated, including a
19 mortgage, deed of trust, trust deed, security
20 deed, indenture, and deed to secure debt, and

21 (2) whether the agreement also creates a security
22 interest in personal property, and

23 b. does not include an agreement that creates a
24 consensual interest to secure a liability owed by a

1 unit owner to a condominium association, owners'
2 association, or cooperative housing association for
3 association dues, fees, or assessments;

4 5. "Mortgage modification" means modification of:

5 a. a mortgage,

6 b. an agreement that creates an obligation, including a
7 promissory note, loan agreement, or credit agreement,
8 or

9 c. an agreement that creates other security or credit
10 enhancement for an obligation, including an assignment
11 of leases or rents or a guaranty;

12 6. "Obligation" means a debt, duty, or other liability secured
13 by a mortgage;

14 7. "Obligor" means a person that:

15 a. owes payment or performance of an obligation,

16 b. signs a mortgage, or

17 c. is otherwise accountable, or whose property serves as
18 collateral, for payment or performance of an
19 obligation;

20 8. "Person" means an individual, estate, business or nonprofit
21 entity, government or governmental subdivision, agency, or
22 instrumentality, or other legal entity;

23 9. "Recognized index" means an index to which changes in the
24 interest rate may be linked that is:

1 a. readily available to, and verifiable by, the obligor,
2 and

3 b. beyond the control of the person to whom the
4 obligation is owed;

5 10. "Record", used as a noun, means information:

6 a. inscribed on a tangible medium, or

7 b. stored in an electronic or other medium and
8 retrievable in perceivable form; and

9 11. "Sign" means, with present intent to authenticate or adopt
10 a record, to:

11 a. execute or adopt a tangible symbol, or

12 b. attach to or logically associate with the record an
13 electronic symbol, sound, or process.

14 SECTION 3. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 403 of Title 46, unless there is
16 created a duplication in numbering, reads as follows:

17 A. Except as provided in subsection C of this section, this act
18 applies to a mortgage modification.

19 B. This act does not affect:

20 1. Laws governing the required content of a mortgage;

21 2. A statute of limitations or other law governing the
22 expiration or termination of a right to enforce an obligation or a
23 mortgage;

24 3. A recording statute;

1 4. A statute governing the priority of a tax lien or other
2 governmental lien;
3 5. A statute of frauds; or
4 6. Except as provided in paragraph 8 of subsection B of Section
5 4 of this act, laws governing the priority of a future advance.
6 C. This act does not apply to any of the following
7 modifications:
8 1. A release of, or addition to, property encumbered by a
9 mortgage;
10 2. A release of, addition of, or other change in an obligor; or
11 3. An assignment or other transfer of a mortgage or an
12 obligation.
13 SECTION 4. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 404 of Title 46, unless there is
15 created a duplication in numbering, reads as follows:
16 A. For a mortgage modification described in subsection B of
17 this section:
18 1. The mortgage continues to secure the obligation as modified;
19 2. The priority of the mortgage is not affected by the
20 modification;
21 3. The mortgage retains its priority regardless of whether a
22 record of the mortgage modification is recorded in the county
23 records office in the county where the property is located; and
24 4. The modification is not a novation.

1 B. Subsection A of this section applies to one or more of the
2 following mortgage modifications:

3 1. An extension of the maturity date of an obligation;

4 2. A decrease in the interest rate of an obligation;

5 3. If the change does not result in an increase in the interest
6 rate of an obligation as calculated on the date the modification
7 becomes effective:

8 a. a change to a different index that is a recognized
9 index if the previous index to which changes in the
10 interest rate were linked is no longer available,

11 b. a change in the differential between the index and the
12 interest rate,

13 c. a change from a floating or adjustable rate to a fixed
14 rate, or

15 d. a change from a fixed rate to a floating or adjustable
16 rate based on a recognized index;

17 4. A capitalization of unpaid interest or other unpaid monetary
18 obligation;

19 5. A forgiveness, forbearance, or other reduction of principal,
20 accrued interest, or other monetary obligation;

21 6. A modification of a requirement for maintaining an escrow or
22 reserve account for payment of an obligation, including taxes and
23 insurance premiums;

1 7. A modification of a requirement for acquiring or maintaining
2 insurance;

3 8. A modification of an existing condition to advance funds;

4 9. A modification of a financial covenant; and

5 10. A modification of the payment amount or schedule resulting
6 from another modification described in this subsection.

7 C. The effect of a mortgage modification not described in
8 subsection B of this section is governed by other law.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 405 of Title 46, unless there is
11 created a duplication in numbering, reads as follows:

12 In applying and construing this uniform act, a court shall
13 consider the promotion of uniformity of the law among jurisdictions
14 that enact it.

15 SECTION 6. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 406 of Title 46, unless there is
17 created a duplication in numbering, reads as follows:

18 This act modifies, limits, or supersedes the Electronic
19 Signatures in Global and National Commerce Act, 15 U.S.C., Section
20 7001 et seq., but does not modify, limit, or supersede 15 U.S.C.,
21 Section 7001(c), or authorize electronic delivery of any of the
22 notices described in 15 U.S.C., Section 7003(b).

1 SECTION 7. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 407 of Title 46, unless there is
3 created a duplication in numbering, reads as follows:

4 This act applies to a mortgage modification made on or after the
5 effective date of this act regardless of when the mortgage or the
6 obligation was created.

7 SECTION 8. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 408 of Title 46, unless there is
9 created a duplication in numbering, reads as follows:

10 If a provision of this act or its application to a person or
11 circumstance is held invalid, the invalidity does not affect another
12 provision or application that can be given effect without the
13 invalid provision.

14 SECTION 9. This act shall become effective November 1, 2026.

15 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
16 April 14, 2026 - DO PASS
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